CMA Board Approval: June 5, 2023
Effective date: June 6, 2023

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Morgan County
Kimberly Dickles, Clerk
Instrumen. 206500
07/28/2023 @ 11:00:57 AM
COVENANTS, RESTRICTIONS, ARTIC

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2023-01
EXTERIOR FIRE POLICY

This Policy Resolution supersedes Policy Resolution 2020-04 of the same name, approved in October 2020.

WHEREAS, CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents; and

WHEREAS, CMA Declaration of Covenants and Restrictions, Article IV, Section 2, Paragraph (c) and (d) provide for suspension of the enjoyment of rights of any Member for any period during which assessments are unpaid and for infraction of published rules and regulations; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VI, Section 9, Nuisances, stipulates no noxious, offensive, or potentially dangerous activity shall be permitted on any lot or within the subdivision; and fires without appropriate size or containment present a significant danger to the community and forest we live in; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VII, Section 4, Other Rules, and Regulations specifically allow for limiting outside fires and fireplaces; and

WHEREAS, the CMA Bylaws, Article 5, Section 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law, or with policies adopted by the Members at an Annual or Special Meeting, for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties and Facilities by (1) Members and the immediate family of Members, (2) Members' guests, and (3) Members' tenants. Such rules and regulations shall include procedures to assure that any penalties shall not be imposed arbitrarily or unreasonably and shall provide a mechanism for appeals by Members. Members may delegate their rights of enjoyment in Common Properties and Facilities to the family members who reside upon The Properties or to any of their tenants. The rights and privileges of such persons are subject to suspension to the same extent as those of the Members; and

WHEREAS, the CMA Bylaws, Article 5, Section 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member; and

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WHEREAS, CMA is located in a woodland area with high potential for wildfires; does not have fire hydrants within the community; and is served only by a volunteer fire department located approximately 5 miles away;

NOW, THEREFORE, IT IS HEREBY RESOLVED the Board adopts the following "Exterior Fire Policy" to promote fire safety within the community and reduce the risk community exposure to wildfires:

I. Overview

A. Each property owner is responsible for control of exterior fires on their property, for compliance with this Exterior Fire Policy, and for ensuring any person occupying the property, regardless of relationship to the owner, also complies with this Policy. Owners are responsible for ensuring all occupants are aware of CMA policies.

B. Owners must ensure occupants comply with all state, county, and local laws, rules, and regulations regarding exterior fires.

- Exterior fires are not permitted if a local or national weather service has issued a "high wind warning" and/or the WV Division of Forestry has determined the area is at High, Very High, or Extreme Fire Danger (information available at http://wfas.net/images/firedanger/subsets/fdc_f_wv.png).

C. Open, on the ground, in-ground fires are not allowed.

D. Burning of trash or solid materials other than wood, coal, or charcoal is not permitted in any exterior fire.

E. Accelerants such as gasoline or petrochemicals, other than those specifically made for lighting charcoal, will not be used. Charcoal lighting accelerants will only be used in strict conformance with manufacturer recommendations.

F. All exterior fires must be attended at all times by an adult knowledgeable of the fire container's operation and capable of extinguishing the fire whenever fire or coals are present.

G. Owners/Occupants using an exterior fire container must have an AB or ABC rated fire extinguisher or a functional water hose capable of reaching the fire container and surrounding area.

H. The CMA Board, Design and Architectural Control Committee (DACC), or Site Manager may require approval of any exterior fire container on any property for good cause. If

approval is not granted, the owner must cease use and remove or render the container non-functional to the Board's or DACC's satisfaction.

I. Board members, DACC members, the Site Manager, and any others the Board cares to designate in writing may enter an owners' property to extinguish, or require the owner/occupant to extinguish, any fire operated in an unsafe manner or contrary to these rules.

J. All grass, brush, stubble, leaves, or other debris must be removed for a minimum distance of 10 feet from the fire container in all directions.

K. Authorized fire containers:

1. Exterior propane fire containers or barbecues that are UL certified and in good condition are permitted.

2. Wood burning exterior fire containers approved by the DACC or Board are permitted if they are purpose-intended manufactured units of sturdy metal or non-combustible design; in good repair; built to contain all coals, embers, and sparks; and used with a metal cover made for and fit to the receptacle to prevent flying sparks and embers. Openings and covers must have no greater than ¼" mesh or equivalent openings.

3. Charcoal barbeques commercially built for the purpose may be used for cooking food, providing use of accelerants is minimized (*i.e.*, no abnormally large, flaring fire), and an adult capable of extinguishing the coals is present at all times.

4. The DACC may authorize a custom-built fire container after review of the design and construction specifications are submitted by written application and after a follow-up DACC inspection confirms the finished product meets those designs.

5. The DACC, Site Manager, Board member or representative designated in writing may verbally revoke DACC or Board fire receptacle approvals at any time for good cause. Such action must be reported as soon as practical to the Site Manager and Board. Continued use of the container constitutes a violation.

6. No fire container may have flames extending significantly beyond the receptacle, its cover, or chimney.

II. Enforcement

A. Any violation of these rules by an owner or occupant may result in immediate Board, DACC, or Site Manager suspension or termination of previous approvals of fire containers and/or violation fines imposed by the Board to the owner.

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B. Owners/Occupants who observe Exterior Fire Policy violations should immediately contact the Site Manager noting the violation issue, date, time, owner's name, and lot number, if known.

C. The Board or Site Manager will make official notification to the owner of their responsibility to remedy the situation as well as to the Treasurer if there is a violation fine assessment.

D. Owners will take immediate action to correct a violation. Owners that do not take immediate action to correct a violation will have their CMA amenity rights suspended for 30 days per violation. In addition, the Board may suspend an owner's use of an exterior fire container for up to one year and/or assess a violation fine of $200, due within 30 days of the notice of violation.

E. The Site Manager will maintain a record of all such violations and in the case of multiple violations, recommend further action to the Board.

F. Owners with repeat violations within 60 days will be subject to a $300 fine for the second and any subsequent violations, due within 30 days of the violation notification.

G. Owners may appeal a violation and/or fine to the CMA Board within 30 days of violation notification. The Board will schedule the hearing within 30 days; either in person or via teleconference and the owner must attend or the appeal will be denied without a hearing. The Board's determination is final. Any violation and/or fine under appeal is suspended until the Board's determination and due within 30 days of closure of the appeal.

H. If there is conflict between this policy and the Articles of Incorporation, Covenants and Restrictions, or Bylaws the latter documents take precedence. If there is conflict between this policy and other CMA rules and regulations, the latest dated material takes precedence. Any conflict will be brought to the Board's attention for resolution.

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COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2020-04
EXTERIOR FIRE POLICY

RESOLUTION ACTION RECORD

Revision duly adopted at a meeting of the Board of Directors held on: June 5, 2023

Motion by: Dawne Holz Seconded by: Steve Katz

Title, Name	For	Against	Abstain	Absent
President, Steve Katz	X			
Vice President, Jefferson Stovall	X			
Treasurer, Dawne Holz	X			
Secretary, Valerie Creason	X			
Director, Lisa Johnson	X			
Director, Travis Martz	X			
Director, Jack Wennersten	X			

ATTEST:

Resolution revision effective date: June 6, 2023

Valerie Lm Creason
Secretary

June 6, 2023
Date

County Clerk's Office
Morgan County, West Virginia JUL 28 2023
The foregoing writing, was this day presented in said office and thereupon admitted to record.
at 11:00. Teste: Kimberly Hicks Clerk